

Defendant's Evidentiary Objections to Miller Declaration

Obj. No. 1 – **Sustained.**

Conclusion and Ruling

ABM Industries met its initial burden on the motion by presenting facts and evidence demonstrating it was not Whitehead's employer and was not a party to the 2013 Lease Agreement with Flowers by which Whitehead was assigned to work for Flowers. For the reasons detailed above, Plaintiff has not raised triable issues of material fact sufficient to show that there are triable issues as to whether ABM Industries was Whitehead's employer under the respondeat superior, dual employment, or special employment doctrines, or as a member of a single enterprise with ABM General, warranting imposition of liability on ABM Industries for any liability of ABM General for Whitehead's negligence.

The motion for summary judgment in favor of ABM Industries is **granted**.

4. 9:00 AM CASE NUMBER: C24-02472
CASE NAME: VERONICA RAMIREZ VS. ARA HOSPITALITY SERVICES, INC.
LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: RAMIREZ, VERONICA
TENTATIVE RULING:

Plaintiff's unopposed motion to file a First Amended Complaint is **granted**.
Plaintiff shall file the proposed First Amended Complaint within 10 days of August 7, 2026.

Parties are reminded the next Case Management Conference (CMC) is set for September 10, 2026 at 8:30 am in D32. Parties must file updated CMC Statements 10 days prior to the CMC.

5. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
TO CONSOLIDATE HEARINGS
FILED BY: VIGIL, THEODORE JOSEPH
TENTATIVE RULING:

The Court has no jurisdiction as to this motion because this matter remains stayed in view of the referral to arbitration. See line 7.

6. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
VACATE ORDER
FILED BY: VIGIL, THEODORE JOSEPH
TENTATIVE RULING:

The Court has no jurisdiction as to this motion because this matter remains stayed in view of the referral to arbitration. See line 7.

7. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
FOR RECONSIDERATION
FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Theodore-Josheph Vigil's Motion for Reconsideration of the July 18, 2025, Order granting Defendant Future Ford of Concord's Motion to Compel Arbitration. This matter was continued from the March 20, 2026, hearing.

For the reasons explained below, **Plaintiff's Motion for Reconsideration is denied.** The matter remains stayed in view of the referral to arbitration.

The Court sets a Case Management Conference ("CMC") at **8:30 am on December 3, 2026, in Dept. 32.** Parties to file a CMC Statement on the status of the arbitration at least 10 days prior to the CMC.

Procedural Background

This case is about alleged predatory lending practices surrounding the purchase of a 2022 Ford Explorer ST that took place on September 19, 2024. (Complaint at pp.2-6.)

Plaintiff filed this suit against Defendant on January 8, 2025. Plaintiff then filed a First Amended Complaint ("FAC") on February 14, 2025. Defendant filed its Motion to Compel Arbitration on March 21, 2025. The Court granted that motion after hearing on July 18, 2025.

On May 1, 2025, in response to Plaintiff's written discovery and given the fact that the motion to compel arbitration had been filed and the hearing was set for after the discovery would be due, Defendant filed an ex parte application for an order staying the case pending resolution of its motion to compel arbitration which was granted with the caveat "except discovery related to motion" ie the parties were allowed to conduct narrowly tailored discovery for related to the motion to compel arbitration. (Crowell Decl. ¶ 3, Ex. B.)

Defendant's Application was granted and filed with the Court, but Defendant failed to serve the signed order on Plaintiff. According to Defendant's counsel, Plaintiff was present at the Ex-Parte hearing and Plaintiff was given the option to wait for counsel to provide a hard copy at the courthouse or to obtain the order once it was available online. (Crowell Decl. ¶¶ 10-14.)

On July 28, 2025, Plaintiff filed the instant motion for reconsideration of the July 18, 2025, order granting the Defendant's motion to compel arbitration.

On August 14, 2025, Defendant's counsel emailed Plaintiff a letter offering the opportunity to propound discovery related to the motion to compel arbitration as provided by the Ex Parte Order. (Crowell Decl. ¶ 15-16, Ex. B and H.) Plaintiff did not serve any discovery in response to Defendant's counsel August 14, 2025, letter. (Crowell Decl. ¶ 17.)

March 20, 2026, Ruling

In a hearing on March 20, 2026, the Court found that Plaintiff had not conducted discovery related to the motion to compel because Defendant failed to serve the signed May 1, 2025, order on Plaintiff. (The May 1, 2025, order had authorized Plaintiff to conduct discovery related to Defendant's Motion

to Compel Arbitration.).

As a result of the finding, the Court granted Plaintiff time to propound discovery related to the Motion to Compel Arbitration and continued the Motion for Reconsideration to August 7, 2026.

Legal Standard for Reconsideration

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may, “based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*)

A trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 (“*Brown*”).) “This authority derives from the judiciary’s fundamental, constitutionally mandated function to resolve specific controversies between the parties.” (*Brown*, 47 Cal.4th at 1248.)

Analysis

Plaintiff’s Electronic Signature

Plaintiff argues in his “Opposition” papers to the Motion to Compel (which the court considers as the Plaintiff’s Motion for Reconsideration) that Defendant cannot satisfy its burden of proving the existence of a valid agreement because Defendant cannot produce metadata or native electronic records associated with the alleged agreement, cannot identify device, session, or execution-related data associated with the alleged signing event, and cannot produce records establishing how the alleged electronic agreement was authenticated or attributed to Plaintiff. (Plaintiff’s Moving Papers [filed July 6, 2026] at p. 3: 11-15; Plaintiff’s Reply Papers [filed on August 3, 2026] at p. 5: 6-18.)

A proponent seeking to authenticate an electronic signature must show the electronic signature ““was the act of the person,”” which could be shown ““in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.”” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843, italics omitted; see Civ. Code, § 1633.9, subd. (a).) For example, a party may present evidence that the signatory was required to use a unique, private login and password to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions. (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 53; citing *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062.) In sum, once [the Opposing Party] produced evidence challenging the authenticity of the purported arbitration agreement, the [Moving Party] was required to rebut the challenge by establishing by a preponderance of the evidence that the agreement was valid. The [Moving Party] did not have to authenticate [the Opposing Party]’s signature on the arbitration agreement. The [Moving Party] could have met its burden in other ways, including a declaration from the [Moving Party]’s custodian of records. (*Gamboa v. Northeast Community Clinic* (2021) 72

Cal.App.5th 158, 171.)

Defendant has met its burden by proving that the electronic signature was the act of Plaintiff by establishing evidence that the Arbitration Agreement was valid. Defendant did this by authenticating the Arbitration Agreement through its Declaration of Zabilhullah "Mo" Yousofzai In Support Of Defendant's Motion To Compel Binding Arbitration Pursuant To Contract And To Stay This Case. Mr. Yousofzai declared that he had him electronically sign the contract on a tablet. (Yousofzai Decl. ¶ 7.) Mr. Yousofzai goes on to state that the electronic signed copy of the contract was included in the deal jacket. (Id.)

The Court notes that Plaintiff's position about the signing of the contract has been inconsistent. In Plaintiff's declaration attached to his moving papers, he emphatically states that at no time during the transaction did he electronically sign the Retail Installment Sales Contract using a computer, tablet, touchscreen device, kiosk, cellular telephone, or any other electronic signature platform. (Vigil Declaration at p. 2: 15-17.) On the next page of his declaration Plaintiff states that he has no recollection of executing a second contract or electronically signing documents after signing the paper contract on which he made amendments to. (Vigil Declaration at p. 3: 14-18.)

Considering the totality of the circumstances, the Yousofzai Declaration satisfies authentication of the Arbitration Agreement under *Ruiz* and Civil Code section 1633.9.

Conclusion

Plaintiff has failed to show new or different facts, circumstances, or law that would entitle him to a different decision than the one made by the court granting the motion to compel arbitration. Accordingly, **Plaintiff's Motion for Reconsideration is denied**. The matter remains stayed in view of the referral to arbitration.

The Court sets a Case Management Conference ("CMC") at **8:30 am on December 3, 2026, in Dept. 32**. Parties to file a CMC Statement on the status of the arbitration at least 10 days prior to the CMC.

8. 9:00 AM CASE NUMBER: C25-00064
CASE NAME: MILDRED POWELL VS. SUNSET VIEW CEMETERY ASSOCIATION
FILED BY DEFENDANTS
FILED BY: